

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ DISADVANTAGED ☐ SERVICE-DISABLED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	
15. DELIVER TO CODE		13b. RATING			
		14. METHOD OF SOLICITATION REQUEST ☐ REQUEST ☐ INVITATION ☐ FOR QUOTE ☐ FOR BID ☐ FOR PROPOSAL (RFQ) (IFB) (RFP)			
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			16. ADMINISTERED BY CODE		
			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

PRICE SCHEDULE - LABOR

This award incorporates the Offeror's Technical Proposal dated (to be completed at time of award) at the binding labor rates shown in the schedule below.

Binding Labor Rates Unit Price Schedule. The Contractor shall provide services at the following fixed, fully loaded rates:

Labor Category	Base	Opt. Yr. 1	Opt Yr. 2	Opt Yr. 3	Opt. Yr 4
Project Manager (PM)					
Deputy Project Manager (DPM)					
IT Specialist (ITS)					
Technical Reviewer (TR)					
Program Assistant 1 (PA1)					
Program Assistant 1 (PA2)					
Technical Specialist (TS)					
Financial Specialist (FS)					
Administrative/Clerical (A/C)					

The Offeror shall fill in the hourly rates for the base year and each of the option years. Offerors are cautioned that the rates proposed will be legally binding for both the base and option periods. The offeror's proposed labor rates are to be fully burdened rates inclusive of profit. The offeror is responsible for the accuracy of all data input, formulas, and calculations. Contractor shall use the

labor rates in this schedule to price all modifications issued throughout the life of the contract. The contractor may use labor rates that are lower than the proposed rates for modifications, but the Contractor shall not exceed the proposed rates.

The resulting contract includes a base period of one year, and four (4) one-year option periods in accordance with RFO 52.217-9. There is no guarantee that the option periods will be exercised on the awarded contract. The only authorized ordering office is the US Army Corps of Engineers Mission Support Battalion (UMSB).

*** END OF NARRATIVE ***

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	SERDP & ESTCP Program Support Services - Base Year Contractor shall provide all labor, supervision, and management necessary to complete the required services for the Base Year of the Period of Performance (POP) in accordance with the attached Performance Work Statement (PWS) entitled "SERDP and ESTCP Program Support". Pricing Arrangement: Firm Fixed Price	1	Job		
0002	SERDP ESTCP Program Support - Travel (Base Year) The Government will reimburse travel at cost (including applicable overhead and/or G&A costs), without any fee. Pricing Arrangement: Cost No Fee	1	Job	\$300,000	\$300,000
0003	SERDP & ESTCP Program Support Services - Other Direct Costs (Base Year) Routine supplies and reproduction costs in accordance with Performance Work Statement. Pricing Arrangement: Cost No Fee	1	Job	\$600,000	\$600,000

Option Line Item 1001	SERDP & ESTCP Program Support Services - Option Year 1 Contractor shall provide all labor, supervision, and management necessary to complete the required services for Option Year 1 of the Period of Performance (POP) in accordance with the attached Performance Work Statement (PWS) entitled "SERDP and ESTCP Program Support". Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 1002	SERDP ESTCP Program Support - Travel (Option Year 1) The Government will reimburse travel at cost (including applicable overhead and/or G&A costs), without any fee. Pricing Arrangement: Cost No Fee	1	Job	\$300,000	\$300,000
Option Line Item 1003	SERDP & ESTCP Program Support Services - Other Direct Costs (Option Year 1) Routine supplies and reproduction costs in accordance with Performance Work Statement. Pricing Arrangement: Cost No Fee	1	Job	\$600,000	\$600,000
Option Line Item 2001	SERDP & ESTCP Program Support Services - Option Year 2 Contractor shall provide all labor, supervision, and management necessary to complete the required services for Option Year 2 of the Period of Performance (POP) in accordance with the attached Performance Work Statement (PWS) entitled "SERDP and ESTCP Program Support". Pricing Arrangement: Firm Fixed Price	1	Job		
Option		1	Job		

Line Item 2002	SERDP ESTCP Program Support - Travel (Option Year 2) The Government will reimburse travel at cost (including applicable overhead and/or G&A costs), without any fee. Pricing Arrangement: Cost No Fee			\$300,000	\$300,000
Option Line Item 2003	SERDP & ESTCP Program Support Services - Other Direct Costs (Option Year 2) Routine supplies and reproduction costs in accordance with Performance Work Statement. Pricing Arrangement: Cost No Fee	1	Job	\$600,000	\$600,000
Option Line Item 3001	SERDP & ESTCP Program Support Services - Option Year 3 Contractor shall provide all labor, supervision, and management necessary to complete the required services for Option Year 3 of the Period of Performance (POP) in accordance with the attached Performance Work Statement (PWS) entitled "SERDP and ESTCP Program Support". Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 3002	SERDP ESTCP Program Support - Travel (Option Year 3) The Government will reimburse travel at cost (including applicable overhead and/or G&A costs), without any fee. Pricing Arrangement: Cost No Fee	1	Job	\$300,000	\$300,000
Option Line Item 3003	SERDP & ESTCP Program Support Services - Other Direct Costs (Option Year 3) Routine supplies and reproduction costs in accordance with Performance Work Statement. Pricing Arrangement: Cost No Fee	1	Job	\$600,000	\$600,000

Option Line Item 4001	SERDP & ESTCP Program Support Services - Option Year 4 Contractor shall provide all labor, supervision, and management necessary to complete the required services for Option Year 4 of the Period of Performance (POP) in accordance with the attached Performance Work Statement (PWS) entitled "SERDP and ESTCP Program Support". Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 4002	SERDP ESTCP Program Support - Travel (Option Year 4) The Government will reimburse travel at cost (including applicable overhead and/or G&A costs), without any fee. Pricing Arrangement: Cost No Fee	1	Job	\$300,000	\$300,000
Option Line Item 4003	SERDP & ESTCP Program Support Services - Other Direct Costs (Option Year 4) Routine supplies and reproduction costs in accordance with Performance Work Statement. Pricing Arrangement: Cost No Fee	1	Job	\$600,000	\$600,000

Continuation of Description

Performance Work Statement (PWS)

SERDP and ESTCP Support

1 OBJECTIVE

The Strategic Environmental Research and Development Program (SERDP) and the Environmental Security Technology Certification Program (ESTCP) require program support to execute their missions of developing and demonstrating technologies that meet the Department of Defense (DoD) environmental and energy requirements. SERDP and ESTCP are separate programs that are managed through a joint program office. Support is needed at the program level and in each of the technical areas in which these programs invest.

2 BACKGROUND

SERDP is a multi-agency research and development program that was established by Congress in 1991. As described in Title 10, U.S.C. Sections 2901-2904, the major focus of SERDP is to "address environmental matters of concern to the Department of Defense and the Department of Energy through support for basic and applied research and development of technologies that can enhance the capabilities of the departments to meet their environmental obligations." SERDP supports environmental research and development activities in government, industry, and academic laboratories in the [areas of Environmental Restoration, Munitions Response, Resource Conservation and Resilience, and Weapons Systems and Platforms](#).

ESTCP is a DoD demonstration and validation program for environmental, energy, and installation resilience technologies. The DoD established ESTCP in fiscal year 1995. ESTCP demonstrates and validates innovative technologies that target DoD's most urgent environmental, energy, and installation resilience needs and are projected to pay back the investment through cost savings, increased efficiency, and improved mission outcomes. The program provides funding to government, industry, and academic institutions to conduct demonstrations in the following six areas: Environmental Restoration, Installation Energy and Water, Munitions Response, Natural Hazards Adaptation, Resource Conservation and Resilience, and Weapons Systems and Platforms.

Details about the SERDP and ESTCP program structure, current projects, examples of solicitation documents, project requirements, and examples of program outreach can be found on the joint SERDP and ESTCP web site, <https://serdp-estcp.mil/>.

3 TYPE OF SUPPORT

The required services are expected to break out as roughly:

1. Technical Review of Proposals and Documents: 35%
2. Direct Support to Program Areas: 30%
3. Administrative and Financial: 15%
4. Meeting Planning, Logistics and Support: 10%
5. Outreach: 10%

All personnel shall be qualified by education and experience appropriate to perform their assigned tasks. The following key personnel are essential to management and oversight, and shall meet the minimum specific qualifications outlined.

Project Manager: The project manager shall have a minimum of 10 years' experience in project management, including 5 years' experience managing a team of the size and diversity of skills needed to perform the work described. The project manager shall have experience with government management of research and development, as well as familiarity with the structure and management of the DoD. The project manager must have sufficient technical training so as to be capable of managing and assuring the technical quality of the support provided, including technical reviews.

Information Technology Specialist: Three essential elements of the work described below are the online project management system, the online proposal management and evaluation system, and the SERDP and ESTCP joint web site. To manage these elements, the contractor must demonstrate that the individual in the role of providing oversight for the information technology enterprise has expertise in state-of-the-art hardware and software, including experience in web site management, database management, on-line reporting and management systems, acceptance and management of electronic proposals, and the appropriate security protections.

4 GENERAL REQUIREMENTS

This section describes the general requirements for this effort. The following sub-sections provide details of various considerations on this effort.

4.1 Non-Personal Services

The Government shall neither supervise contractor employees nor control the method by which the contractor performs the required tasks. Under no circumstances shall the Government assign tasks to, or prepare work schedules for, individual contractor employees. It shall be the responsibility of the contractor to manage its employees and to guard against any actions that are of the nature of personal services or give the perception of personal services. If the contractor believes that any actions constitute, or are perceived to constitute personal services, it shall be the contractor's responsibility to notify the Procuring Contracting Officer (PCO) immediately.

4.2 Business Relations

The contractor shall successfully integrate and coordinate all activity needed to execute the requirement. The contractor shall manage the timeliness, completeness, and quality of problem identification. The contractor shall provide corrective action plans, proposal submittals, timely identification of issues, and effective management of subcontractors. The contractor shall seek to ensure customer satisfaction and professional and ethical behavior of all contractor personnel.

4.3 Contract Administration and Management

The following subsections specify requirements for contract, management, and personnel administration.

4.3.1 Contract Management: The contractor shall establish clear organizational lines of authority and responsibility to ensure effective management of the resources assigned to the requirement.

4.3.2 Contract Administration: The contractor shall establish processes and assign appropriate resources to effectively administer the requirement. The contractor shall respond to Government requests for contractual actions in a timely fashion. The contractor shall have a single point of contact between the Government and Contractor personnel assigned to support contracts.

4.3.3 Personnel Administration: The contractor shall provide the following management and support as required.

- The contractor shall provide for its employees during designated Government non-work days or other periods where Government offices are closed due to weather or security conditions.
- The contractor shall maintain the knowledge and certification requirements of its employees by providing initial and refresher training as required to meet the PWS requirements.
- The contractor shall make necessary travel arrangements for its employees.
- The contractor shall provide necessary infrastructure to support contract tasks.
- The contractor shall provide administrative support to its employees in a timely fashion (time keeping, leave processing, pay, emergency needs, etc.).

4.4 Subcontract Management

The contractor shall be responsible for any subcontract management necessary to integrate work performed on this requirement and shall be responsible and accountable for subcontractor performance on this requirement. The prime contractor will manage work distribution to ensure there are no organizational conflict of interest (COI) considerations. Cross teaming may or may not be permitted.

4.5 Contractor Personnel, Disciplines, and Specialties

The contractor shall accomplish the assigned work by employing and utilizing qualified personnel with appropriate combinations of education, training, and experience. The contractor shall match personnel skills to the work or task with a minimum of under/over employment of resources. The contractor shall ensure the labor categories as defined in the Labor Categories document (see Appendix A), labor rates, and man-hours utilized in the performance of each task issued hereunder will be the minimum necessary to accomplish the task.

4.6 Location of Work

Accomplishment of the results contained in this PWS requires work primarily at the contractor's and subcontractor's location, with occasional domestic travel as needed. The administrative tasks described in Section 5.1.10 may be performed at the contractor's designated location, but may

require occasional on-site support at the SERDP and ESTCP Office or at the Pentagon. The Program Area Support tasks described in Section 5.2 may be conducted at the contractor's location.

4.7 Travel / Temporary Duty (TDY)

Travel to government facilities or other locations may be required and will be specified in the PWS. All travel requirements (including plans, agenda, itinerary, or dates) shall be pre-approved by the government (subject to local policy procedures) and is on a strictly cost reimbursable basis. Costs for travel shall be billed in accordance with the regulatory implementation of Public Law 99-234 and RFO 31.205-46 Travel Costs.

5 SERDP & ESTCP PERFORMANCE REQUIREMENTS

The contractor shall provide comprehensive technical, programmatic, and administrative support services for the Program Office in the Washington, D.C. area. The contractor shall provide services to the Director and staff to meet all program planning, technical and financial oversight, and management needs for the two programs.

The contractor shall hold regular meetings with the Director and designated staff to review workflows, upcoming meetings, and critical taskings.

5.1 Program Level Support

5.1.1 Web-Based Reporting System: The contractor shall support and maintain a web-based project tracking system for approximately 400 active SERDP and ESTCP projects. The incumbent contractor currently maintains the SERDP and ESTCP Management System (SEMS), which is used to track technical and financial status of projects, contract actions, document status, financial planning, and distribution. In addition, the contractor shall maintain information from past projects since FY95 within SEMS and analyze information as needed.

The contractor shall adhere to security plans for SEMS according to industry best practices. The contractor shall work with the Defense Information Systems Agency (DISA) to ensure SEMS is in compliance with cybersecurity and other information management requirements. The contractor shall report findings that require action and provide recommendations of actions to the Authorizing Official. The contractor shall provide limited modifications as required by the Director to upgrade capability.

5.1.2 Data Management: The contractor shall develop and execute a plan for data management of all data from funded projects. Consideration must be

given to developing a readily accessible database with long-term data hosting and capability for large file transfer.

5.1.3 Solicitation: The contractor shall administratively manage one annual solicitation each for SERDP and ESTCP, an Open Broad Agency Announcement (BAA) each for SERDP and ESTCP, as well as additional special solicitations as needed. Tasks include (a) assisting with updating and preparing proposal submittal instructions and announcements; (b) facilitating Contracting Officer review and approval of instructions, (c) administratively supporting the integration of technical input to the annual Statements of Need (SONs) and topic areas; and (d) disseminating outreach materials describing the solicitations, including but not limited to the SERDP and ESTCP joint web site, ListServe, and support of a webinar. The contractor shall support special studies and workshops as needed for solicitation development.

5.1.4 Proposal Management and Selection: The contractor shall provide technical and programmatic support to execute the SERDP and ESTCP solicitations. Both programs request a brief pre-proposal that is the basis for requesting or not requesting a full proposal. Tasks include (a) maintaining an electronic proposal submittal and tracking system; (b) administrative assistance with drafting selection plans and procedures and associated documentation; (c) administrative assistance with technical evaluations of proposals; and (d) drafting and disseminating notification to proposers.

5.1.5 Information Requests and Programming Actions: The contractor will assist the Program Office in responding to requests from the Office of the Secretary of Defense, the Congress, the General Accountability Office, and other similar requests. The contractor shall assist in drafting, maintaining, and submitting budget exhibits (R-2/R-3/R-4). The contractor will have access to the Correspondence and Task Management Systems (CATMS) within DoD to aid the Program Office in responding to requests for information and submitting CATMS taskers to request information.

5.1.6 Financial Tracking: The contractor shall provide assistance to the Program Office and the Financial Officer with financial tracking. Tasks include (a) assisting with the preparation of funding documents; (b) tracking execution of over 400 projects; and (c) tracking the status of approximately 200 invoices per month. The contractor should have familiarity with government contracting processes, including multiple contracting options, such as cooperative agreements, Other Transactional Authorities (OTAs), and RFO-based contracting.

5.1.7 SERDP Scientific Advisory Board (SAB) and Technical Review Board (TRB): The contractor shall provide technical and program support to the Program Office in managing the SAB and the TRB. The SAB is a Federal Advisory Committee governed by the Federal Advisory Committee Act (FACA) that meets four times per year. Tasks include (a) development and distribution of agendas and read-ahead materials for SAB meetings; (b) meeting site selection and logistics; (c) on-site support; recording, and tracking action items from meetings; (d) recording official minutes; (e) maintaining correspondence and schedule for membership appointments; (f) assistance with preparing the annual FACA report; and (g) meeting all other FACA requirements.

The TRB is comprised of the SERDP Director, Deputy Director, Program Managers, and select federal employees. The TRB replaces the SAB when the SAB is not permitted or timely meetings are not feasible. The TRB meets up 4 or 5 times per year. Tasks include (a) development and distribution of agendas and read-ahead materials for TRB meetings; (b) meeting site selection and logistics; (c) on-site support; recording, and tracking action items from meetings; and (d) recording official minutes.

5.1.8 SERDP Annual Report: The contractor shall assist with drafting the SERDP Annual Report, as required by Statute. Tasks include assembling all current year and planned future year investments and activities and drafting a summary of SAB activities for the year of the report.

5.1.9 Document Management: SERDP and ESTCP receive over 1,000 documents annually for review. The contractor will track the status of all documents associated with SERDP and ESTCP projects, including receipt, review, revision, submission for clearance, and posting to the joint web site and the Defense Technical Information Center (DTIC). Document status shall be tracked electronically in a web-accessible format that is easily accessed by federal program staff. The contractor shall prepare DoD forms to clear documents for public release and interact with the reviewing office in DoD.

5.1.10 Special Studies and Analyses: The contractor shall provide technical and administrative support to meet the needs of SERDP and ESTCP in response to information requests, program development, technology transfer, and collaboration.

5.1.11 Administrative Support: The contractor shall provide the administrative support needed to execute the requirements set forth in this PWS. Tasks will include (a) assistance with correspondence, preparation and tracking of packages for OSD; (b) assistance with travel planning, preparation and transmittal of contracting packages; (c) maintenance of office files; (d) interaction with DoD security and building management; (e) interaction with DoD information technology (IT) staff; and (f) maintenance of an annual master program schedule.

5.2 Program Area Direct Support

The contractor shall provide direct support to each Program Area under SERDP and ESTCP. The direct support will involve assisting the Program Manager throughout the life-cycle of investments, including solicitation planning, proposal review and selection, tracking project execution, and ending with technology transfer. Each Program Area requires a designated support staff possessing excellent executive management skills in order to assist with the management of a multitude of deliverables, meetings, and information requests.

The contractor shall hold regular meetings with each Program Manager to review workflows, upcoming meetings, and critical tasking.

Specific support activities that are required are described in the following sections.

5.2.1 Manage Project Selection Process: An annual solicitation is released each year under both SERDP and ESTCP. Historically, approximately 800-1,000 pre-proposals and 250 full proposals are received for the combined solicitations. Within each Program Area, the contractor shall administratively manage the project selection process, to include the following:

- Assist the Program Manager with the development of the Program Area's solicitation topic(s).
- Coordinate the technical review of submitted proposals, as described in Section 5.1.3, including assisting with the selection and notification of peer reviewers, and interfacing with Technical Review Committees.
- Assist with the development of response letters to Principal Investigators (PIs).
- Assist with the organization of selection meetings, including developing agendas, interfacing with PIs, collecting presentations in advance, and conducting the meeting.

- Host in-person selection meetings as needed while providing capability for effective virtual or hybrid selection meetings.

5.2.2 Project Technical and Financial Tracking: The PI for each project is required to submit specific technical and financial information to SERDP and ESTCP. Technical and financial information is summarized in a number of different reports and includes the following:

- Monthly financial reports (MFRs) (required of all projects)
- Quarterly progress reports (QPRs) (required of all projects)
- Demonstration Plan (required for all ESTCP projects)
- Interim Report (at least one required for all core SERDP projects)
- Final Report (required for all projects)
- Miscellaneous project-specific reports

Historically, excluding the MFRs and QPRs, a total of approximately 1000 documents are received in a year. The contractor shall track technical and financial information through every step of the review process as described in Section 5.1.8, including the following:

- Review the database for delinquent reports and contact lead investigators regarding delinquent reports as necessary.
- Enter tracking information into a database for all documents excluding MFRs and QPRs.
- Coordinate the technical review of documents as needed.
- Incorporate technical reviewer comments into response letters to the PI for Program Office review as needed.

5.2.3 Manage Technical Progress Meetings: All SERDP and ESTCP PIs are required to attend annual In Program Reviews (IPRs) to provide an overview of project results to the Program Office. These IPRs can be held in-person, virtually, or hybrid at the discretion of the Program Office. The contractor shall manage these technical progress meetings, to include the following:

- Track projects to ensure they attend progress meetings on the appropriate schedule.
- Assist the Program Manager in the development and distribution of meeting agendas.
- Interface with PIs and the Technical Review Committee to communicate logistical details.
- Collect final presentations from PIs.
- Assist with the development of comments to PIs after the meeting.
- Assist with conducting the meeting.
- Host IPR meetings as needed while providing capability for effective virtual or hybrid IPR meetings.

5.2.4 Represent Program Office at Technical Conferences: The Program Office attends approximately 10 national conferences per year and displays a booth at these meetings to highlight the Programs and encourage future participation in the solicitation process. The contractor shall attend these conferences, maintain and display the booth, and answer questions from conference attendees about SERDP and ESTCP.

5.2.5 Other Duties: The contractor shall provide additional direct support to the program areas in responding to data requests, maintaining orderly and up to date project information in SEMS and tracking deviances, planning and attending program area-related meetings, tracking project contracting actions and funding distributions, and attending and documenting other project-related calls and meetings including kick off calls and final project summary briefings. .

5.3 Technical Review

The contractor shall provide technical review of documents and proposals as required by SERDP and ESTCP. Effective technical review will require personnel with expertise in a wide variety of technical topics including but not limited to environmental engineering; ecology; materials science; chemistry; energetic materials, electromagnetics, underwater acoustics, chemicals of concern in waters, soils, and sediments; munitions constituents; energy efficiency technologies; cybersecurity; renewable energy; energy storage; wastewater treatment; air conditioning; heating; and microgrids. As the SERDP and ESTCP portfolios evolve, additional expertise beyond this list may be required.

The technical reviewers shall have advanced degrees (generally a Ph.D. or a M.S. with 5+ years of experience) in their specified technical areas. Reviewers shall have sufficient familiarity with the environmental requirements of the DoD to make recommendations as to the technical merit of proposed and ongoing work, and its value to the DoD.

Specific support activities required are described in the following sections.

5.3.1 Technical Reports: Each SERDP and ESTCP project is required to submit a number of technical reports over the life of the project. These include:

- Demonstration Plans (required for all ESTCP projects)
- Go/No Go Decision Reports
- Interim Reports (at least one required for all core SERDP projects)
- Final Reports (required for all projects)
- Miscellaneous project-specific reports

Historically, a total over 1,000 of these documents are received in a year. The contractor shall engage subject matter experts for an independent, critical review of each submitted document. The normal turn-around time expected for these reviews is three weeks, although the vagaries of field site availability or weather windows may require a shorter turn-around in a limited number of cases.

5.3.2 Pre-proposals and Proposals: Both SERDP and ESTCP release an annual solicitation for proposals. Historically, approximately 800-1,000 pre-proposals and 250 full proposals are received in response to these solicitations.

- For each pre-proposal, the contractor shall provide a review to evaluate relevance and feasibility and will offer technical advice to support SERDP and ESTCP in deciding whether to request a full proposal.
- For each full proposal requested, the contractor shall arrange for peer review by three to five outside experts identified by the contractor and approved by the Program Office.
- For each proposal recommended by the peer reviewers, the contractor shall summarize the review comments and provide technical advice to the Program Manager to support a decision on whether to fund the proposal.
- The technical experts who review the proposals may be required to support the Program Manager at a Technical Committee selection meeting and subsequent In-Progress Reviews.

5.3.3 New Technical Challenges and Modifications to Existing Program Areas: As the challenges confronting the DoD evolve, SERDP and ESTCP evolve to

meet these challenges. This may take the form of modifications to the emphasis of existing Program Areas or the establishment of new Program Areas. Often these changes are accomplished by convening a workshop of technical experts to assist SERDP and ESTCP in defining requirements and drafting a research strategy in response to these requirements. As needed, the contractor shall identify technical experts in any new area identified by the director of SERDP and ESTCP, vet these experts, and make them available to support workshops and planning sessions. Subsequent to any modifications to SERDP and ESTCP, these technical experts, or others similarly qualified, shall be available for proposal and document review as described above.

5.4 Meeting Planning, Support, and Logistics

5.4.1 Proposal and Project Reviews: The contractor shall provide support for program meetings as listed below. Tasks will include assistance with developing and distributing agendas and read-ahead materials, receipt and organization of presentations, identifying and procuring space, on-site meeting support, note taking, and summarizing and documenting action items. The contractor shall be capable of supporting on-line meetings and webinars for up to 1500 people.

5.4.2 In-Progress Reviews: IPR meetings are held three to ten times per year, depending on the Program Area; the majority of IPR meetings are held virtually with approximately 25% held in person. Every core project that

SERDP and ESTCP fund is required to provide an IPR presentation at least once per year. Typically, there are a total of 90-95 days of IPR meetings per year.

5.4.3 SAB: The SERDP SAB is required by statute to meet 4 times per year. Meetings are typically 2-3 days. Three meetings per year are held in the Washington, D.C. area with virtual attendance options at the discretion of the Program Office. One meeting per year may be held at a DoD installation and includes a tour of DoD activities relevant to SERDP.

5.4.4 TRB: The SERDP TRB meets 4 -5 times per year only when SAB meetings cannot be convened. Meetings are typically 1-2 days. These meetings are typically held virtually.

5.4.5 SERDP Selection Meetings: Each of the four SERDP Program Areas holds a one- to two-day meeting to select proposals for funding annually. Additional selection meetings occur virtually through the year to address special solicitations, BAA proposals, and invitational proposals.

5.4.6 ESTCP Selection Meetings: Each of the six ESTCP Program Areas holds one meeting annually to review pre-proposals. These meetings are 0.5-2 days' duration. The six areas also each hold one meeting per year to review full proposals. These meetings involve in-person presentations by proposers and are typically 2-4 days' duration, although the EW Program Area generally requires 5 - 10 days. Additional selection meetings occur virtually through the year to address special solicitations, BAA proposals, and invitational proposals.

5.4.7 Workshops and Special Technical Meetings: The contractor shall provide technical, program, and administrative support for occasional meetings hosted by SERDP and ESTCP. Such meetings may include project reviews, technology transfer meetings, workshops, and other focused technical meetings. These meetings may vary in size from 10 to 200 participants. Tasks will include developing agendas, organizing speakers, organizing and disseminating read-ahead material, planning and acquiring space, making arrangements for hotel room blocks, providing on-site support, taking meeting notes, and drafting summary reports.

5.5 Outreach

5.5.1 Web Site: The contractor shall maintain and host the SERDP and ESTCP joint web site, keep content current, draft news stories and blogs, update and draft content for web pages, and produce pages for new start and complete

projects. The contractor shall update the web site as needed, to include transfer to a new operating platform and an update of the content structure. The contractor shall provide a plan for ensuring web page content is periodically reviewed and updated. The SERDP and ESTCP web site can be accessed at <https://serdp-estcp.mil/>.

5.5.2 State and Federal Agency Outreach: The contractor will assist with outreach to relevant state and federal agencies, such as the Interstate Technology and Regulatory Board (ITRC), including identifying relevant agencies and assisting with pursuing appropriate outreach.

5.5.3 Webinar Series: The contractor shall provide support for a series of regular bi-weekly webinars with a capacity of up to 2000 attendees. The contractor shall be responsible for maintaining a schedule in consultation with SERDP and ESTCP staff, contacting presenters, coordinating presentations, providing all needed technical support, and recording and editing webinars for archiving on the SERDP and ESTCP web site.

5.5.4 ListServe: The contractor shall maintain the SERDP and ESTCP ListServe, which currently has approximately 15,000 subscribers, and periodically disseminate information at the direction of SERDP and ESTCP.

5.5.5 Social Media: The contractor will maintain SERDP and ESTCP social media presence on Twitter, Linked-In, Facebook, and Google+, as well as other emerging social media as appropriate. The contractor shall regularly post notices, including but not limited to new start projects, recently completed reports, awards to investigators, and significant events in the DoD related to energy and environment.

5.5.6 Newsletters: The contractor will assemble and disseminate the SERDP and ESTCP Headlines newsletter three times per year as well as Program Area specific newsletters up to once per month per Program Area. Most content is derived from materials already produced for the web site. Additional content will be required in the areas of program updates, news, and announcements.

5.5.7 Conference Support: The contractor shall represent and promote SERDP and ESTCP technical conferences relevant to the programs. Tasks include maintenance and support of an exhibit booth, preparing technical presentations, and supporting training sessions on technology implementation.

5.5.8 Technology Transfer Products: The contractor shall prepare as needed draft and final briefing slides, web pages, and written summaries of technologies, project status, demonstration results, and program

accomplishments suitable for a variety of audiences, including DoD decision makers, end users, and regulators.

5.5.9 Symposium: The contractor shall provide technical and administrative support for a joint SERDP and ESTCP Workshop to be held in the Washington, D.C. area in a major conference center. The contractor shall cover all requirements to plan, publicize and execute a national technical conference that has recently attracted 1,000 to 1,200 attendees. It is expected that future workshops will be similar in format to prior ones, including a plenary session, multiple concurrent technical sessions, poster sessions, and short courses. Information regarding prior symposia is on the SERDP and ESTCP web site at <https://www.serdp-estcp.org/News-and-Events/Conferences-Workshops>.

7 PROGRAM MANAGEMENT

7.1 Contract Meetings

The contractor shall participate in meetings for program management as deemed necessary by either party. Meetings may be held virtually, at the USACE Mission Support Battalion (UMSB) in Alexandria, VA or at the SERDP and ESTCP Office in Washington, DC.

7.2 Monthly Report

The contractor shall provide a monthly progress report summarizing required activities. The report shall identify each sub-task as assigned and display cost, performance, and schedule against the budget and work plan originally submitted in the proposal.

8 TIMELINESS OF SERVICES

In order to maintain orderly execution at the program and project level, it is essential that SERDP and ESTCP adhere to a tight annual schedule, including but not limited to solicitation development, proposal review, project selection, project review, document review, and funding execution. The contractor shall be required to provide timely services at critical steps throughout the annual cycle. Typical requirements are:

Information Requests and Programming Actions	<1 day -7 days
Solicitation Documents	Establish schedule to deliver draft documents beginning three months prior to release

Selection Meeting Summary and Comments	One week following conclusion of the meeting
SAB and TRB Action Items and Minutes	Two weeks following conclusion of the meeting
In-Progress Review Comments	One week following conclusion of the meeting
Technical Report Reviews	Three weeks from receipt of document
Final Report Reviews	Four weeks from receipt of document

9 SPECIAL REQUIREMENTS

This section describes the special requirements for this effort. The following sub-sections provide details of various considerations on this effort.

9.1 Contractor Manpower Reporting

The contractor shall report ALL contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract for SERDP and ESTCP via a secure data collection site. The contractor is required to completely fill in all required data fields using the following web address: <https://www.sam.gov/>. Reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year of contract performance. Contractors may direct questions to the help desk at help desk at: <https://www.sam.gov> to review user manuals and gain an understanding about the data fields that will be included in the reporting structure that is hosted at <http://www.sam.gov>.

9.2 Quality

This section describes the Quality Control components for this effort. The following sub-sections provide details of various considerations on this effort.

9.2.1 Quality Control: The Contractor shall develop a quality control plan (QCP) and maintain an effective quality control program to ensure services are performed in accordance with the IDIQ contract and this PWS. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The Contractor's QCP is the means by which they assure themselves that their work complies with the requirements of the contract.

The finalized QCP will be accepted by the Government 30 days after date of the contract award. The Contracting Officer may notify the Contractor of required modifications to the plan during the period of performance. The Contractor then shall coordinate suggested modifications and obtain acceptance of the plan by the Contracting Officer. Any modifications to the program during the period of performance shall be provided to the Contracting Officer for review no later than 10 working days prior to effective date of the change. The QCP shall be subject to the Government's review and approval. The Government may find the QCP "unacceptable" whenever the Contractor's procedures do not accomplish quality control objective(s). The Contractor shall revise the QCP within 10 working days from receipt of notice that QCP is found "unacceptable."

9.2.2 Quality Assurance Surveillance Plan (QASP): The Government shall monitor the Contractors performance under this contract in accordance with the Government's QASP.

10 DELIVERABLES

The contractor shall provide deliverables as described in this PWS. Deliverables shall be specified by the government. Format and delivery schedule for deliverables are outlined in Contract Data Requirements Lists (CDRLs) and/or as stated in the applicable section of the PWS. The table below identifies a set of deliverables that will be required under this contract.

NUMBER	NAME	FREQUENCY	QUANTITY
A1	Monthly Report: Summarizes required activities ; identifies each sub-task as assigned and display cost, performance, and schedule against the budget and work plan originally submitted in the proposal.	Monthly	1
A2	Quality Control Plan: The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services.	Once	1, updated as required

Performance Requirement Summary (PRS)

Performance standards define services. The Government performs surveillance to determine if the contractor meets or does not meet these standards.

The Contractor shall submit a time and cost estimate and shall submit their plan for performance of the work. At a minimum, the Contractor's plan will include: (1) a statement of understanding the task; (2) a description of the approach to the task; (3) a list of participants by expertise; (4) level of effort estimated by labor category (e.g., program manager, project manager, technical specialist) and; (5) a cost estimate. The Government shall use these standards to determine contractor performance and shall compare contractor performance to an Acceptable Quality Level (AQL). The AQL is the percentage of tasks that meet the standards listed in the table below.

ID	PRODUCT	STANDARD	ACCEPTABLE QUALITY LEVEL	METHOD OF SURVEILLANCE	INCENTIVE
1	Prepare and submit proposals per Government provided PWS	Product delivered on time.	95% over all tasks	100% review	Exercise of option period
2	Prepare and submit monthly invoices in accordance with the Contract	Delivered in a timely manner and in accordance with contract clause with no more than 10% variance.	95% over all tasks	100% review	Exercise of option period

3	Prepare and submit completed products (i. e., reports, studies, etc.) as described in the Government's SOW	Product delivered on time and at cost with no more than 10% variance. Product deemed acceptable by COR.	95% over all tasks	Direct observation, 100% review or status meeting	Exercise of option period
4	Solicitations; acceptance of peer review technical rankings	Product delivered on time and at cost with no more than 10% variance. Product deemed acceptable by COR.	95% over all tasks	Direct observation, 100% review or status meeting	Exercise of option period
5	Program execution tracking /SEMS: completeness and accuracy of data in SEMS	Product delivered on time and at cost with no more than 10% variance.	System down time less than 0.5 days/month	Direct observation, 100% review or status meeting	Exercise of option period
6	Document reviews (Demonstration plans, technical reports)	On-time completion of reviews; acceptance of review comments by SERDP	95% of document reviews	Direct observation, 100% review or status meeting	Exercise of option period

		& ESTCP program manager			
7	Multi-media outreach	Product delivered on time and at cost with no more than 10% variance. Product deemed acceptable by COR.	95% over all tasks	Direct observation, 100% review or status meeting	Exercise of option period

APPENDIX A - LABOR CATEGORIES

The following labor categories are the only approved labor categories to be used on the contract:

Project Manager (PM) - Serves as single individual responsible for formulating and enforcing work standards, assigning contract staff and schedules, maintaining regular contact with Government's Contracting Officer's Representative (COR). Supervises all project personnel and communicates policies, procedures, and goals of the firm to these employees. The PM is responsible for the overall project plan, project performance, and client satisfaction on multiple project tasks.

Information Technology Specialist (ITS) - The ITS provides oversight for the information technology enterprise and the Program web site, and has expertise in state of the art hardware and software, including experience in web site management, database management, on-line reporting and management systems, acceptance and management of electronic proposals, and the appropriate security protections.

Technical Reviewer (TR) - The TR is a highly qualified, nationally recognized expert in his or her field. The TR's role is to review and provide written comments on pre-proposals, full proposals, Demonstration Plans, and Final Reports, as well as other technical project reports. The TR will also attend In-Progress Reviews and assist in technical workshops.

Deputy Project Manager (DPM) - Oversees key tasks and directly supervises junior personnel. The DPM is responsible for coordination, schedule, and staffing of day-to-day activities to meet program requirements.

Program Assistant 1 - Responsible for advising, assisting, performing technical work, project tracking, financial tracking, interacting with investigators, and guiding lower level employees in a broad set of tasks within a technology area.

Program Assistant 2 - Responsible for assisting in the performance of technical work, project tracking, financial tracking, and interacting with investigators to maintain project files.

Administrative/Clerical (A/C) - Assists PM and DPM by producing, administrative, fiscal, and management reports for resource planning, meetings, and client briefings. Assists with correspondence, file maintenance, FACA requirements, and day-to-day office operations. A/C staff must be knowledgeable in Microsoft Office products such as Scheduler, Word, and Excel.

Technical Specialist (TS) - Responsible for such tasks as document management, data base management, technical editing, web site maintenance, and production of outreach materials.

Financial Specialist (FS) - Assists the financial officer with the preparation of funding documents and travel. Provides regular updates on the execution status of funds.

*** END OF NARRATIVE ***

Requirements

SERDP and ESTCP Program Support Services

0001

Product Service Code : R408

North American Industry Classification System (NAICS) : 541690

0002

Product Service Code : R408

0003

Product Service Code : R408

Continuation of Inspection and Acceptance

CONTRACTING OFFICER AUTHORITY

Only a warranted Contracting Officer, acting within their delegated limits, has the authority to issue modifications or otherwise change the terms and conditions of this contract. If an individual other than the Contracting Officer attempts to make changes to the terms and conditions of this contract you shall not proceed with the change and shall immediately notify the Contracting Officer.

(End of Clause)

PAYMENTS AND INVOICING

a. General. The Government shall pay the Contractor as full compensation for all work required, performed and accepted under this contract, inclusive of all prices negotiated under the accepted proposal.

b. The Contractor shall submit invoices pertaining to this contract action via e-mail. The subject line shall include the contract number and an invoice number.

CEFC-S0invoices@usace.army.mil

Additionally, the Contracting Officer's Representative (COR) and SERDP/ESTCP Program Office shall be copied on all invoice submissions. The COR's email will be provided at the time of award.

The SERDP/ESTCP Program Office email for invoices:

osd.mc-alex.ousd-atl.mbx.serdp-estcp-invoices@mail.mil

The final invoice should be marked as such. If more than 30 days have passed since the invoice was submitted Questions regarding status of payment should be directed to the USACE Finance Center at CEFC-Payments@usace.army.mil.

(End of Clause)

*** END OF NARRATIVE ***

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location
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	Both Other Instructions: Inspection and Acceptance to be completed by SERDP & ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
0002	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be completed by SERDP & ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
0003	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be performed by SERDP and ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860

	UNITED STATES
Option Line Item 1001	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be completed by SERDP & ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
Option Line Item 1002	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be completed by SERDP & ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
Option Line Item 1003	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be performed by SERDP and ESTCP Program Office

	DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
Option Line Item 2001	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be completed by SERDP & ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
Option Line Item 2002	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be completed by SERDP & ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
Option	Inspection and Acceptance Location

Line Item 2003	Both Other Instructions: Inspection and Acceptance to be performed by SERDP and ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
Option Line Item 3001	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be completed by SERDP & ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
Option Line Item 3002	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be completed by SERDP & ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD

	ALEXANDRIA, VA 22315-3860 UNITED STATES
Option Line Item 3003	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be performed by SERDP and ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
Option Line Item 4001	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be completed by SERDP & ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
Option Line Item 4002	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be completed by SERDP & ESTCP Program Office

	DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES
Option Line Item 4003	Inspection and Acceptance Location Both Other Instructions: Inspection and Acceptance to be performed by SERDP and ESTCP Program Office DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES

Continuation of Deliveries or Performance

PERIOD OF PERFORMANCE/EXERCISE OF OPTION PERIODS

The base period of performance will be one year. Four (4) one-year option periods will also be included and may be exercised at the discretion of the Contracting Officer. The Government makes no guarantee that any or all options will be exercised on any or all of the resultant contracts.

When deciding whether to exercise the option, the Contracting Officer will consider the quality of the contractor's performance under the contract(s), as well as the requirements specified at RFO 17.207 - Exercise of Options.

PLACE OF PERFORMANCE

Performance shall take place at the Contractor's facility, unless otherwise defined in the PWS. Occasional travel may be required and will be specified in the PWS.

*** END OF NARRATIVE ***

0001	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2026 To 14 Jun 2027
0002	Quantity 1 Job Address and POC

	Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2026 To 14 Jun 2027
0003	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2026 To 14 Jun 2027
Option Line	Quantity 1 Job

Item 1001	Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2027 To 14 Jun 2028
Option Line Item 1002	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2027 To 14 Jun 2028
Option	Quantity 1 Job

Line Item 1003	Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2027 To 14 Jun 2028
Option Line Item 2001	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2028 To 14 Jun 2029

Option Line Item 2002	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2028 To 14 Jun 2029
Option Line Item 2003	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2028 To 14 Jun 2029

Option Line Item 3001	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2029 To 14 Jun 2030
Option Line Item 3002	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2029 To 14 Jun 2030

Option Line Item 3003	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2029 To 14 Jun 2030
Option Line Item 4001	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance

	From 15 Jun 2030 To 14 Jun 2031
Option Line Item 4002	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO Period of Performance From 15 Jun 2030 To 14 Jun 2031
Option Line Item 4003	Quantity 1 Job Address and POC Place of Performance DoDAAC: W912HQ CountryCode: USA W4LD USA HECSA KO CONTRACTING DIVISION, 7701 TELEGRAPH ROAD ALEXANDRIA, VA 22315-3860 UNITED STATES Dr. Andrea Leeson, DELIVER_TO_EMP_ID_NO

Period of Performance

From

15 Jun 2030

To

14 Jun 2031

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	2020-06	Alternate I	2021-11
52.203-13	Contractor Code of Business Ethics and Conduct.	2021-11		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)	2026-02		
52.204-13	System for Award Management-Maintenance. (Deviation)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	2026-02		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)	2026-02		

52.212-4	Terms and Conditions- Commercial Products and Commercial Services. (Deviation)	2026-02
52.219-8	Utilization of Small Business Concerns. (Deviation)	2026-02
52.219-16	Liquidated Damages- Subcontracting Plan. (Deviation)	2026-02
52.222-35	Equal Opportunity for Veterans. (Deviation)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation)	2026-02
52.222-54	Employment Eligibility Verification. (Deviation)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements.	2021-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10

52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.203-7003	Agency Office of the Inspector General.	2019-08		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	2024-05	Deviation 2024-O0013	2024-05
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	2024-10		

252.225-7012	Preference for Certain Domestic Commodities.	2022-04
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	2023-01
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.245-7005	Management and Reporting of Government Property.	2024-01
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
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52.219-4 Notice of Price Evaluation 2026-02
Preference for HUBZone Small
Business Concerns. (Deviation)

Notice of Price Evaluation preference for HUBZone Small Business Concerns (Feb 2026)
(Deviation)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) Waiver of evaluation preference. A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

[] Offeror chooses to waive the evaluation preference.

(c) Joint venture. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

SPECIAL CONTRACT REQUIREMENTS

RFO provision 52.229-11 and RFO clause 52.229-12 are included in this solicitation. This provision and clause concern the imposition of a 2 percent Federal excise tax withholding on any resultant contract award or payment request. This rule applies to Federal Government contracts for goods or services that are awarded to foreign persons - such as foreign contractors. It implements the Department of the Treasury's final regulations published in the Federal Register at 81 FR 55133 on August 18, 2016, under section 5000C of the Internal Revenue Code relating to the 2 percent tax on payments made by the U.S. Government to foreign persons pursuant to certain contracts.

Pursuant to the RFO 52.229-3 Federal, State, and Local Taxes, taxes imposed under 26 U.S.C. 5000 C may not be included in the contract price or reimbursed.

Exemptions from this excise tax must be claimed by an Offeror when it submits, with its offer, a U. S. Department of Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/W14. If not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent on each contract payment. Failure to submit an IRS Form W-14 with each payment request will also result in an automatic withholding of 2 percent from the payment request.

When filling out the IRS Form W-14 the following information may be used to complete Part I, Lines 6 and 7.

Line 6 Contract/reference number: W912HQ26RA001

Line 7 "Name and address of the acquiring agency": USACE Mission Support Battalion, 7701 Telegraph Rd, Alexandria, VA 22315

Any exemption claimed and self-certified is subject to audit by the IRS. Any disputes concerning this tax are adjudicated by the IRS because the Section 5000C tax is a tax matter not a contract issue.

Offerors are encouraged to seek guidance from their own tax professionals for advice concerning the provision, clause, and exclusions exclusion/submission of IRS Form W-14.

Notwithstanding the above, the USACE does not have a means of withholding this excise tax at this time. As a result, contractors are expected to comply with the instructions above and to properly complete and return the W-14 at proposal submission, and with each pay application. Whether the contractor sets the money aside for future payment to the IRS, or makes payment to the IRS, is the contractor's discretion, based on its analysis of the regulations regarding the excise tax. In the event that USACE is able to withhold during contract performance, it will notify the contractor and make such a withholding (including any catch up withholdings); no advance notice

is required to the contractor prior to the withholding. Under no circumstances is USACE liable for any tax not paid by the contractor. The contractor is liable for the tax, to the extent required by law, regardless of whether USACE makes a withholding.

RFO 29.204 expressly states that "[a]gencies merely withhold the tax (section 5000C tax) for the Internal Revenue Service (IRS). All substantive issues regarding the underlying section 5000C tax, e.g., the imposition of, and exemption from the tax, are matters under the jurisdiction of the IRS." Therefore, we cannot help you determine how the tax law applies to you. We strongly recommend that you contact the IRS and/or a tax professional should you have any questions of this nature. To be clear, this information does not constitute tax advice or a representation of your tax liability. Furnishing this information does not create liability for the USACE for any Federal, state, or local taxes applicable to the above-referenced contract or any other contract.

For submission requirements and basis of evaluation:

Executed RFO Provision 52.229-11.

Completed IRS Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, if applicable. If not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent on each payment.

(End of Clause)

GOVERNMENT RESERVED RIGHTS

The Government reserves the right to approve contractor recommended changes in technical personnel during the life of the contract.

(End of Clause)

SERVICE CONTRACT REPORTING

GOVERNMENT SUPPLIED INFORMATION:

1. Agency/Command: Office of the Secretary of Defense
2. Requiring Activity UIC: DDAAUG
3. Federal Service Code: R408

(End of Clause)

KEY PERSONNEL

The contractor shall notify the Contracting Officer prior to the replacement of key personnel. The contractor must submit key personnel with equal or better qualifications than the personnel being replaced.

(End of Clause)

*** END OF NARRATIVE ***

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.202-1	Definitions.	2020-06		
52.203-5	Covenant Against Contingent Fees.	2014-05		
52.203-7	Anti-Kickback Procedures.	2020-06		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	2014-05		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	2014-05		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	2020-06		
52.203-16	Preventing Personal Conflicts of Interest.	2020-06		
52.204-19	Incorporation by Reference of Representations and Certifications.	2014-12		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	2026-02		
52.215-2	Audit and Records-Negotiation. (Deviation)	2026-02		

52.215-8	Order of Precedence-Uniform Contract Format. (Deviation)	2026-02		
52.219-9	Small Business Subcontracting Plan. (Deviation) (Alternate II)	2026-02	Alternate II	2026-02
52.219-9	Small Business Subcontracting Plan. (Deviation)	2026-02		
52.222-3	Convict Labor. (Deviation)	2026-02		
52.223-23	Sustainable Products. (Deviation)	2026-02		
52.227-1	Authorization and Consent.	2020-06		
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	2020-06		
52.229-3	Federal, State, and Local Taxes.	2013-02		
52.232-1	Payments.	1984-04		
52.232-8	Discounts for Prompt Payment.	2002-02		
52.232-11	Extras.	1984-04		
52.232-17	Interest.	2014-05		
52.232-23	Assignment of Claims.	2014-05		
52.232-25	Prompt Payment.	2017-01		
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06		
52.233-1	Disputes. (Deviation)	2026-02		
52.237-3	Continuity of Services.	1991-01		

52.240-91	Security Prohibitions and Exclusions. (Deviation)	2026-02		
52.242-13	Bankruptcy.	1995-07		
52.242-15	Stop-Work Order.	1989-08		
52.242-17	Government Delay of Work.	1984-04		
52.243-1	Changes-Fixed-Price. (Deviation) (Alternate I)	2026-02	Alternate I	2026-02
52.244-6	Subcontracts for Commercial Products and Commercial Services. (DEVIATION 2025-O0003)	2026-02	Deviation 2025-O0003	2025-03
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	2026-02		
52.245-1	Government Property.	2021-09		
52.246-4	Inspection of Services-Fixed-Price.	1996-08		
52.246-25	Limitation of Liability-Services.	1997-02		
52.249-2	Termination for Convenience of the Government (Fixed-Price).	2012-04		
52.249-8	Default (Fixed-Price Supply and Service).	1984-04		
52.253-1	Computer Generated Forms. (Deviation)	2026-02		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.204-7000	Disclosure of Information.	2016-10		
252.204-7003	Control of Government Personnel Work Product.	1992-04		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	2023-01		
252.204-7023	Reporting Requirements for Contracted Services. (Alternate I)	2021-07	Alternate I	2021-07
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	2019-05		
252.219-7996	Small Business Subcontracting Plan (DoD Contracts). (DEVIATION 2026-O0037)	2026-02	Deviation 2026-O0037	2026-02
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	2023-01		
252.225-7004	Report of Intended Performance Outside the United States and Canada -Submission after Award.	2024-07		
252.225-7048	Export-Controlled Items.	2013-06		
252.237-7010	Prohibition on Interrogation of	2023-01		

**Detainees by Contractor
Personnel.**

252.243-7001	Pricing of Contract Modifications.	1991-12		
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-00015)	2026-02	Deviation 2026-00015	2026-01
252.245-7003	Contractor Property Management System Administration	2025-01		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.217-9	Option to Extend the Term of the Contract.	2000-03		

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within ____ [insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least ____ days [60 days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed ____ (months) (years).

(End of clause)

52.252-2 Clauses Incorporated by 1998-02
 Reference.

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

____ _ [Insert one or more Internet addresses]

(End of clause)

52.252-6 Authorized Deviations in Clauses. 2020-11

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any ____ [insert regulation name] (48 CFR ____) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

Attachment 1 - Source Selection Evaluation Rating Methods

Attachment 2 - NAVFAC/USACE Past Performance Questionnaire

Attachment 3 - Small Business Participation Plan

Attachment 4 - Small Business Subcontracting Plan Template for Offerors

Attachment 5 - Past Performance in Subcontracting Plans

*** END OF NARRATIVE ***

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	2023-11		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	2023-06
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FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-7	Information Regarding Responsibility Matters. (Deviation)	2026-02		

Information Regarding Responsibility Matters (Feb 2026) (Deviation)

(a) Definitions. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

PROPOSAL SUBMISSION

1. General Instructions:

(a) This section provides a general guidance for preparing proposals as well as specific instructions on the format and content of the proposal. The Offeror's proposal must include all data and information requested in this section and must be submitted in accordance with these instructions. Any Offeror who submits an incomplete package may be considered ineligible for award. The proposal must be compliant with the requirements as stated in the PWS and Appendices thereto. Non-conformance with the instructions provided in this section may result in unfavorable proposal evaluation.

(b) Proposal Submission. Offerors shall submit proposals to the following email addresses:

Ms. Shannon N. Benson: shannon.n.benson@usace.army.mil

-and-

Mr. Douglas E. Pohlman: Douglas.E.Pohlman@usace.army.mil

The proposal cover page should contain the solicitation number W912HQ26RA001. Electronic proposals will be accepted. Failure to submit proposals by the closing time and date designated in Block 9 of the Standard Form 1449 (SF1449) may result in the proposal being deemed "late" and not considered for evaluation. See RFO 52.215-1 Instructions to Offerors - Commercial Products and Commercial Services for rules concerning submission of offers and late proposals.

(c) Questions. Offerors may submit questions or comments relating to this solicitation via email to shannon.n.benson@usace.army.mil (CC Douglas.E.Pohlman@usace.army.mil) within 10 calendar days from the solicitation issue date. Email subject line shall read: "Solicitation No. W912HQ26RA001 Questions". The Government will consider all correspondence but will not issue individual responses; instead, if appropriate, a solicitation amendment will be issued. No questions will be accepted via phone. Individual meetings with firms will not be scheduled. Voicemails with questions and/or requests for meetings will not receive a response. Questions received after 10 calendar days from the solicitation issue date may or may not be answered.

2. Proposal Submission Requirements:

Offerors shall submit their proposal as five volumes and each factor will be contained in a separate tab, submitted digitally in Adobe PDF format, as set forth below:

Volume No. & Maximum Pages

Vol 1: Factor 1 - Technical Understanding and Approach - 200 pages

Vol 2: Factor 2 - Personnel Experience - 200 pages

Vol 3: Factor 3 - Past Performance Minimum of three, Maximum of five PPQs

Vol 4: Factor 4 - Small Business Participation - No Page Limit

Vol 5: Factor 5 - Price - No Page limit

NOTE 1: Pages that exceed the required page limitations will not be evaluated. Additional pages over the maximum allowed will be removed or not read and will not be evaluated by the Government. The page limit is inclusive of all documentation required in Volume 2, including resumes, and personnel charts. Volume 3 includes a maximum amount of completed past performance questionnaires.

NOTE 2: No pricing information should be included with Volume 1 or Volume 2. Only include pricing information in Volume 5.

a. Files must not contain classified data. The use of hyperlinks in proposals is prohibited. Offerors are cautioned that "parroting" of the Technical requirements of the PWS with a statement of intent to perform does not reflect an understanding of the requirement or capability to perform.

Offerors are responsible for including sufficient details to permit a complete and accurate evaluation of each proposal. Proprietary information shall be clearly marked.

b. Each volume must be submitted as an Adobe PDF.

c. Print shall be single spaced. Paragraphs should be separated by one blank line. A standard, 12-point minimum font size applies. Arial or New Times Roman fonts are suggested. Tables and illustrations may use a reduced font size no less than 8-point and may be landscape.

3. Proposal Files

a. Format. The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date and RFP number in the header and/or footer. A Table of Contents should be created using the Table of Content feature in MS Word. MS Word (docx) pages shall use the following page setup parameters:

Margins - Top, Bottom, Left, Right - 1"

Gutter - 0"

From Edge - Header, Footer 0.5"

Page Size, Width - 8.5"

Page Size, Height - 11"

b. File Packaging. All of the proposal files shall be compressed (zipped) into one file entitled proposal zip using WinZip version 6.2 or later, or as separate uploads in their native format, i.e. PDF. **Please note - Self extracting .exe files are not acceptable. **

c. Content Requirement. The proposal shall be prepared clearly and concisely to demonstrate that the Offeror has a complete understanding of the requirements. Offerors shall prepare proposals on the presumption that the Government has no previous knowledge of the Offeror's capabilities.

Proposals will be evaluated only on the information specifically presented in respective submittals, with the exception of the Past Performance evaluations. When applicable, the Offeror shall cross reference to the solicitation by annotating the solicitation reference in parenthesis, (e.g., Sec C, para 4.0). Proposals must set forth full, accurate, and complete information as required by this solicitation (including attachments). The penalty for making a false statement in proposals is prescribed in 18 U.S.C. (S)1001. Offerors should submit their best proposal initially as the Government intends to make awards without discussions in accordance with RFO 52.215-1 Instructions to Offerors - Commercial Products and Commercial Services (except clarifications, as described in RFO 15.202(a)(2)). The Government reserves the right to conduct discussions, if deemed necessary. Each file of the proposal shall consist of a Table of Contents, Summary Section, and the Narrative discussion. The Summary Section shall contain a brief abstract of the file. Proprietary information shall be clearly marked. The following shall be included in the Narrative discussion:

I. Volume 1 - Factor 1: Technical Understanding and Approach: Offerors shall submit a written narrative proposal which describes and demonstrates the Offeror's technical understanding and approach to satisfy the support needs of SERDP/ESTCP as outlined in the PWS. Additionally, Offerors shall provide detailed information as to their approach to effectively manage the work specified in the PWS. Offerors shall provide enough information to demonstrate a thorough understanding of time and personnel requirements, information on how the Offeror will meet programmatic deadlines, and information on how the Offeror will maintain the functions outlined in the PWS.

III. Volume 2 - Factor 2: Personnel Experience: Offerors shall propose Key Personnel for this requirement and submit resumes demonstrating appropriate education (including certifications) and experience of the personnel proposed (see sections 3 and 5.3 of the PWS). Resumes are only required for the Project Manager, Information Technology Specialist and Technical Reviewers.

III. Volume 3 - Factor 3: Past Performance

A. Offerors shall submit past performance information for a minimum of three (3) and a maximum of (five) 5 contracts or subcontracts completed or ongoing within the last three (3) years from the release date of this solicitation. Ongoing contracts must be at least 50% complete as of the release date of this solicitation. A multiple year contract, i.e. a base year with two option years, must reflect 50% completion of the base year. Offers shall provide a project narrative and reference information in narrative form to address each of the bullets below. All points of contact, addresses, telephone

numbers, data, fax numbers, etc. should be verified by the Offeror prior to submission to the Government as part of the Offeror's proposal. Points of contact should be knowledgeable of past performance from a contractual, managerial, and technical perspective.

Project Title

Project Description

Project Start & Ending Dates

Offeror's role in the Project

Contract Value/Actual Awarded Amount

POCs, Phone, Fax, Address, Email

Statement of the relevancy of the project to this PWS

Optional: Performance recognition documents received within the last three years on projects relevant to this PWS such as awards, award fee determinations, customer letters of commendation, and any other forms of performance recognition.

B. The Naval Facilities (NAVFAC)/USACE Past Performance Questionnaire (PPQ), included in Attachment 2, is provided for the offeror to submit to the client for each contract the Offeror includes in its proposal for Factor 3 - Past Performance. Ensure correct phone numbers and e-mail addresses are provided for the client point of contact. Completed PPQs should be submitted with the Offeror's proposal. If the Offeror is unable to obtain a completed PPQ from a client for a contract(s) before proposal closing date, the Offeror should complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective contract(s). The Offeror should follow-up with clients/references to ensure timely submittal of questionnaires. If the client requests, questionnaires may be submitted directly to the Government's points of contact, Douglas E. Pohlman via email at Douglas.E.Pohlman@usace.army.mil and Shannon N. Benson via email at shannon.n.benson@usace.army.mil before the due date for proposal submission (submit to both). Offerors shall not incorporate by reference into their proposal PPQs previously submitted for other Request for Proposals (RFP). However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance evaluation.

C. In addition to the above, the Government may review any other sources of information for evaluating past performance. Other sources may include, but are not limited to past performance information retrieved through the Past Performance Information Retrieval System (PPIRS), including Contractor Performance Assessment Reporting System (CPARS), using all CAGE codes /UEI numbers of team members (partnership, joint venture, teaming arrangement, or parent company/subsidiary/affiliate) identified in the Offeror's proposal, inquiries of owner representative (s), Federal Awardees Performance and Integrity Information System (FAPIS), System for Award Management (SAM), and any other known sources not provided by the Offeror.

D. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete PPI rests with the offeror.

IV. Volume 4 - Factor 4 - Small Business Participation

A. Small Business Participation Plan (SBPP). The Offeror shall submit a complete SBPP using the RFP Attachment 3.

B. Subcontracting Plan: All other than United States small business concerns as defined by the NAICS code applicable to this solicitation must submit a subcontracting plan in accordance with RFO 52.219-9 utilizing the template included as Attachment 4. Subcontracting plans will be incorporated into the resultant contract.

V. Volume 5 - Factor 5: Price

Volume 5 shall consist of all information, required to support proposed prices. The information submitted in this volume shall comply with the requirements set forth below. There are no page limitations for this volume.

Tab A - SF 1449: If the Offeror is a Joint Venture, Blocks 12 through 18 must be completed in the name of the Joint Venture. All members of the joint venture shall sign the SF 1449 unless agreement by the Joint Venture is furnished with the proposal designating one firm with the authority to bind the other member(s) of the joint venture. In addition, a copy of the joint venture agreement shall be submitted with the proposal and will be evaluated in accordance with applicable regulations. Failure to comply with the foregoing requirements may eliminate the proposal from further consideration.

Tab B - Acknowledgement of Amendments, if applicable: The Offeror shall acknowledge all amendments either by signing and returning the Standard Form 30, Amendment of Solicitation /Modification of Contract (1st page only).

Tab C - Representations, Certifications, and Other Statements: The Offeror shall complete the Representations and Certifications in the System for Award Management (SAM) electronically and provide a copy in this volume of the proposal. Joint ventures shall register in SAM under the legal corporate name of the Joint Venture.

Tab D - Financial Statement: In accordance with RFO 9.103(a) "...contracts shall be awarded to responsible prospective contractors only." To be determined responsible, a prospective contractor must meet the standards at RFO 9.104-1. RFO 9.104-1(a) requires that a prospective contractor must have adequate financial resources to perform the contract, or the ability to obtain them. As an aid in assessing responsibility, the Offeror must submit a current statement of financial condition, certified by a third party, for the past three years. This will help the Government assess a firm's ability to pay its obligations.

Tab E - Corporate Charter, By-Laws, or Joint Venture or Partnership Agreement, if applicable: If two or more parties have formed a partnership or joint venture for the purpose of submitting a proposal under this solicitation and if selected would perform the contract as a single entity, they

must submit with the proposal the Corporate Charter, By-Laws, or Joint Venture or Partnership Agreement.

Tab F - Authorized Offeror Personnel: Provide the name, title, telephone number, and email address of personnel authorized to negotiate and sign contract documents with respect to your proposal.

Tab G - Pricing: Each Offeror must review the PWS of this RFP and submit a complete price proposal for the work proposed. Offeror's price proposal to include labor, other direct costs (ODCs), travel, and the level of effort required for the work. Offerors shall include relevant information and assumptions to support the prices proposed (i.e. types and quantities of ODCs estimated; number of trips estimated; number of travelers, etc.). The Offeror is responsible for the accuracy of all data input, formulas, and calculations.

For proposal preparation purposes, the expected or approximate date for initiation of contract performance is 15 June 2026.

*** END OF NARRATIVE ***

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price /approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

A. BASIS FOR AWARD

The award will be made based on the overall (i.e., best value) proposal that is determined to be the most beneficial to the Government, with appropriate consideration given to the following five (5) evaluation factors:

Factor 1 - Technical Understanding and Approach

Factor 2 - Personnel Experience

Factor 3 - Past Performance

Factor 4 - Small Business Participation

Factor 5 - Price

Evaluation of proposals received under this procurement will follow the Subjective Tradeoff source selection process, outlined in the DoD Source Selection Procedures, dated 20 August 2022.

IMPORTANCE OF FACTORS

Factors 1 and 2 are more important than Factor 3. Factors 1 and 2 are of equal importance. Factor 3 is more important than Factor 4. All non-price factors when combined are significantly more important than price (Factor 5). Offerors will be cautioned that the award may not necessarily be made to the lowest price offered. To receive consideration for award, a rating of satisfactory confidence or neutral confidence must be achieved for Past Performance and a rating of no less than acceptable for other non-price factors.

DISCUSSIONS

The Government intends to make an award on the basis of initial proposals without conducting discussions in accordance with RFO 52.215-1 Instructions to Offerors - Commercial Products and Commercial Services. Therefore, the initial proposal should contain the Offeror's best technical and cost terms. The proposal shall address and contain the information listed in the Proposal Instructions of the Solicitation. The information will be used by the Source Selection Evaluation Board (SSEB) to evaluate and rate each proposal. The Government reserves the right to conduct discussions if the Contracting Officer determines it necessary.

B. FACTORS TO BE EVALUATED

Evaluation of the offeror's proposal shall address each factor as it applies to the Performance Work Statement (PWS). A detailed explanation of the criteria for the evaluation is set forth in the "Evaluation Approach", Paragraph C of this section.

During evaluations of each proposal, the Government will assign each factor an adjectival rating and write a narrative evaluation reflecting the identified findings.

Award will be made to the Offeror whose proposal is most advantageous to the Government based upon an integrated assessment of the evaluation factors described below:

Factor 1 - Technical Understanding and Approach: This factor evaluates the Offeror's proposed technical approach, including the Offeror's approach for managing the work and the Offeror's knowledge and understanding of the requirements for the basic contract period and all option years. An unclear or unspecified technical approach could indicate a lack of understanding concerning mission requirements and may result in the entire proposal receiving an unfavorable rating and/or being eliminated from the competitive range, should discussions be conducted.

Factor 2 - Personnel Experience: This evaluates the Offeror's proposed level of personnel experience and the level of education and certifications held by the proposed personnel for the basic contract period and all option years. The Contractor's proposed Key Personnel (Project Manager and Information Technology Specialist) will be evaluated against the minimum qualifications listed in the PWS, Section 3. Technical Reviewers will be evaluated against the minimum qualifications listed in the PWS, Section 5.3 and Section 6.3. Technical Reviewers as a pool of personnel are significantly important to this requirement.

Technical Factors: The offeror's technical capability will be rated separately from the risk associated with its technical approach.

Ratings and Adjective Descriptions

Combined Technical/Risk Rating: The combined technical/risk rating includes consideration of risk in conjunction with the significant strengths, weaknesses, significant weaknesses, uncertainties, and deficiencies in determining technical ratings. Factor 1 - Technical Understanding and Approach and Factor 2 - Personnel Experience will be rated using the Combined Technical/Risk Rating Method adjectival ratings (see Table 3 in Attachment 1 - Source Selection Evaluation Rating Methods).

Factor 3 - Past Performance

The Government will evaluate the Offeror's past performance to determine the level of performance confidence associated with each offeror. Offerors should provide performance history and references to demonstrate satisfactory performance for at least three (3) but no more than five (5) prior or current contracts that are similar in size, scope and complexity to this requirement performed within the last three (3) years. The Offeror will be evaluated on past performance of the Offeror's demonstrated recent and relevant record in providing services that meet contract requirements within the five support areas (technical review of proposals and documents; direct support to the program areas; administrative and financial; meeting planning, logistics, and support; and outreach) in support of the SERDP/ESTCP programs. The Offeror's past performance and experience in providing relevant technical and other administrative support for the Corps of Engineers, other Army Commands, other DOD or Federal agencies, state agencies,

or private sector companies will also be considered. References should also be provided for any anticipated subcontractor to be used.

Offerors should provide the following:

Reference: Name, Address, POC and phone numbers

Contract Number, Value and Dates

Description of the Contract Effort Relevance to this Solicitation

- a. Each Offeror will be evaluated on its performance under existing and prior efforts for similar services. The offerors may include an overall narrative explaining what aspects of the contract effort are deemed relevant to the proposal effort, as well as significant accomplishments and difficulties. Offerors are responsible for the accuracy and completeness of all information and the government does not assume the responsibility for conducting research because of incorrect reference information of any kind. The references should be provided in descending order, with the most relevant contracts appearing first.
- b. The Government will evaluate the offeror's record of past and current performance within the last three (3) years to ascertain the probability of successfully performing the required efforts of the PWS.
- c. The Government will focus its inquiries on the offeror's (and major subcontractor's) record of performance as it relates to all solicitation requirements, including schedule, performance, and management of subcontractors. Major subcontractors are defined as members of an offeror's overall team who are expected to perform twenty-five (25) percent or more of the proposed effort. A significant achievement, problem, or lack of relevant data in any element of the work can become an important consideration in the evaluation process. Therefore, offerors will be reminded to include the most recent and relevant efforts (within the past three years) in their proposal. Absent any recent and relevant past performance history or when the performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned, the offeror will be assigned a "neutral" confidence rating and its proposal will not be evaluated either favorably or unfavorably on past performance. The Government may use data provided by the offeror in its proposal and data obtained from other sources, including data in Government files or data obtained through interviews with personnel familiar with the contractor and their current and past performance under Federal, State or Local government or commercial contracts for same or similar services as compared to the North American Industry Classification System (NAICS) 541690. Data used in conducting performance confidence assessments shall be within the past three (3) years of the issue date of this RFP.
- d. Offerors shall submit all Government and/or commercial contracts for the prime offeror and each major subcontractor in performance or awarded during the past three years, from the issue date of this RFP, which are relevant to the efforts required by this RFP. The Government may consider a wide array of information from a variety of sources but is not compelled to rely on all the information available.

e. The past performance factor considers each offeror's demonstrated recent and relevant record of performance in supplying services that meet the contract requirements. There are three aspects to the past performance evaluation: recency, relevancy (including context of data), and quality (including general trends in contractor performance and source of information). All three aspects must be considered for each of the contracts or requirements evaluated.

RECENCY: The first aspect is to evaluate the recency of the offeror's past performance. Recency is generally expressed as a time period during which past performance references are considered relevant, and is critical to establishing the relevancy of past performance information. The criteria to establish what prior performance is recent shall be unique to each source selection and shall be stated in the solicitation. The recency timeframe established should be based on the acquisition and the market/industry. For this acquisition, recency is defined as past performance references within the last three years as of the date of this solicitation release.

RELEVANCE: The second aspect is to determine how relevant a recent effort accomplished by the offeror is to the effort to be acquired through the source selection. The criteria to establish what prior performance is relevant shall be unique to each source selection and shall be stated in the solicitation. In establishing what is relevant for the acquisition, consideration should be given to those aspects of an offeror's history of contract (or subcontract) performance that would provide the most context and give the greatest ability to measure whether the offeror will successfully satisfy the current requirement. Common aspects of relevancy include, but are not limited to: similarity of product/service/support, complexity, dollar value, contract type, use of key personnel (for services), and extent of subcontracting/teaming. With respect to relevancy, more relevant past performance will typically be a stronger predictor of future success and have more influence on the past performance confidence assessment than past performance of lesser relevance. There are four levels of relevancy (see Table 4 in Attachment 1 - Source Selection Evaluation Rating Methods).

QUALITY: The third aspect of the past performance evaluation is to establish the overall quality of the offeror's past performance (see RFO 15.104(b)(2)). The past performance evaluation conducted in support of a current source selection does not establish, create, or change the existing record and history of the offeror's past performance on past contracts; rather, the past performance evaluation process gathers information from customers on how well the offeror performed those past contracts. Requirements for considering history of small business utilization are outlined at RFO 15.104(c)(i) and DFARS 215.305(a)(2). The Past Performance Evaluation Team will review all past performance information collected and determine the quality of the offeror's performance, general trends, and usefulness of the information and incorporate these into the performance confidence assessment.

Sources of Past Performance Information for evaluation are as follows:

Past performance information provided by the offeror, as solicited;

Past performance information obtained from questionnaires tailored to the circumstances of the acquisition; and

Past performance information obtained from any other sources available to the Government, to include, but not limited to, Contractor Performance Assessment Reporting System (CPARS), Federal Awardee Performance and Integrity Information System (FAPIS), System for Award Management (SAM), or other databases; the Defense Contract Management Agency; and interviews with Program Managers, Contracting Officers, and Fee Determining Officials.

Performance Confidence Assessment: When source selections require a greater level of discrimination with the past performance evaluation, the SSEB shall use all confidence ratings identified in RFP Attachment 1.

In the case of offerors for which there is no information on past contract performance or where past contract performance information is not available, the offeror may not be evaluated favorably or unfavorably on the factor of past contract performance (see RFO 15.202(c)(1)). In this case, the offeror's past performance is unknown and assigned a performance confidence rating of "Neutral."

Although the SSEB may not rate an offeror that lacks recent, relevant past performance favorably or unfavorably with regard to past performance, the SSA may determine that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating is worth more than a "Neutral Confidence" past performance rating in a best value tradeoff as long as the determination is consistent with stated solicitation criteria. For Past Performance Confidence Assessments Ratings, see Table 5 in Attachment 1 - Source Selection Evaluation Rating Methods.

Factor 4 - Small Business Participation

The extent of small business participation will be evaluated against the goals established in the solicitation. All Offerors (both other than small and small businesses) will be evaluated on the level of proposed participation of small businesses in the performance of the contract (as small business prime offerors or small business subcontractors) relative to the contract. All Offerors will be evaluated on the extent to which small businesses, as defined in RFO Part 19, are specifically identified in proposals. Offerors will be evaluated on the extent of commitment to use such firms (enforceable commitments will be considered more favorably than non-enforceable ones). Offerors will be evaluated on the extent to which they identify complex and varied work small firms are to perform. Offerors will also be evaluated on the extent of past performance in compliance with RFO 52.219-8, "Utilization of Small Business Concerns" and RFO 52.219-9, "Small Business Subcontracting Plan." Offerors will also be evaluated on the extent of small business participation as prime contractors and small business subcontractors in terms of the percentage of the value of the total acquisition.

a. The Government will evaluate the extent to which the Offeror meets or exceeds the mandatory goal of 22% of the Total Contract Value for small business participation. The Small Business Participation Plan will be evaluated using the Small Business Rating Method (see Table 6 in Attachment 1 - Source Selection Evaluation Rating Methods).

All apparently successful offerors that are considered other than small businesses must submit an acceptable subcontracting plan in accordance with RFO 52.219-9 to be eligible for award. This does not apply to small business offerors. Small business offerors are required to submit a Small Business Participation Plan only.

Factor 5 - Price

The resulting award will be a single award FFP contract. Price will be evaluated on the total of the base proposal plus all options. The price proposal will be evaluated to ensure that pricing is fair and reasonable in accordance with price analysis techniques described at RFO 15.404-1

(b). Proposed prices will also be evaluated to determine whether unbalanced pricing is present. An example of unbalanced pricing would be offering a low price for the base year to secure the contract but proposing much higher pricing for the option years.

*** END OF NARRATIVE ***

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.215-1	Instructions to Offerors- Competitive Acquisition. (Deviation)	2026-02		
52.217-5	Evaluation of Options. (Deviation)	2026-02		
52.233-2	Service of Protest. (Deviation)	2026-02		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	2023-01		
252.215-7996	Notification to Offerors- Postaward Debriefings. (DEVIATION 2026-O0048)	2026-03	Deviation 2026-O0048	2026-03
252.225-7003	Report of Intended Performance Outside the United States	2025-10		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-8	Annual Representations and Certifications.	2025-10		

Annual Representations and Certifications (Oct 2025)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is ____
[insert NAICS code].

(2) The small business size standard is ____ [insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$200,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast

Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at 52.204-7.

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

[] (i) 52.204-17, Ownership or Control of Offeror.

[] (ii) 52.204-20, Predecessor of Offeror.

[] (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause # Title Date Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.209-5	Certification Regarding Responsibility Matters. (Deviation)	2026-02
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Certification Regarding Responsibility Matters (Feb 2026) (Deviation)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that-

(i) The Offeror and/or any of its Principals-

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i) (B) of this provision; and

(D) Have [], have not [], within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has [] has not [], within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e. g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the

Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Deviation)	2026-02
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Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2026) (Deviation)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is [] is not [] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.216-1 Type of Contract. (Deviation) 2026-02

Type of Contract (Feb 2026) (Deviation)

The Government contemplates award of a ____ [Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.229-11 Tax on Certain Foreign 2020-06
Procurements-Notice and
Representation.

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.252-1	Solicitation Provisions	1998-02
	Incorporated by Reference.	

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

_____ [Insert one or more Internet addresses]

(End of provision)

52.252-5 Authorized Deviations in 2020-11
Provisions.

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any _____ [insert regulation name] (48 CFR Chapter _____) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7998	Alternate A, Annual Representations and Certifications. (DEVIATION 2026-00043)	2026-02	Alternate A Deviation	2026-02 2026-02

2026-
O0043

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-- Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--

Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing

Persons with Disabilities.

[] (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.		Title	Date	Change
_____	_____	_____	_____	
_____	_____	_____	_____	
_____	_____	_____	_____	
_____	_____	_____	_____	
_____	_____	_____	_____	

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.215-7992	Only One Offer. (DEVIATION 2026-O0048)	2026-03	Deviation 2026-O0048	2026-03
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ONLY ONE OFFER (DEVIATION 2026-O0048) (MAR 2026)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to--

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-2(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7994, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at 15.404).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U. S. Contracting Officer that the proposed price is fair and reasonable [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-1 with the notification].

(4) As specified in FAR 15.403-1(d), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)